

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: StaceyAnn McFarlane-Ross	Team: Squad #15	CCRB Case #: 201708127	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 10/02/2017 9:00 PM	Location of Incident: In front of 8 Thomas S. Boyland Street; At the 81st Precinct stationhouse.	18 Mo. SOL 4/2/2019	Precinct: 81
Date/Time CV Reported Wed, 10/04/2017 1:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/04/2017 1:18 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Iftekharul Awal	30108	950034	081 PCT
2. POM Christian Angeron	14678	961619	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Iftekharul Awal	Force: In front of 8 Thomas S. Boyland Street in Brooklyn, Police Officer Iftekharul Awal used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Iftekharul Awal	Abuse: In front of 8 Thomas S. Boyland Street in Brooklyn, Police Officer Iftekharul Awal refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Christian Angeron	Abuse: In front of 8 Thomas S. Boyland Street in Brooklyn, Police Officer Christian Angeron refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Iftekharul Awal	Discourtesy: At the 81st Precinct stationhouse, Police Officer Iftekharul Awal spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Iftekharul Awal	Abuse: At the 81st Precinct stationhouse, Police Officer Iftekharul Awal refused to provide his name to § 87(2)(b)	E . Substantiated

Case Summary

On October 4, 2017, § 87(2)(b) filed this complaint on behalf of himself and his sister § 87(2)(b) via telephone with the Civilian Complaint Review Board.

On October 2, 2017, at approximately 9:00 p.m., § 87(2)(b) and § 87(2)(b) drove to Brooklyn to pick up their cousin, § 87(2)(b) from Brooklyn who had left home. As § 87(2)(b) § 87(2)(b) drove around, § 87(2)(b) saw § 87(2)(b) exited the vehicle and chased after her. As § 87(2)(b) § 87(2)(b) drove in search of § 87(2)(b) and § 87(2)(b) he failed to stop at a stop sign located at the intersection of Saratoga Avenue and Decatur Street. Soon after, he was pulled over by PO Iftekharul Awal and PO Christian Angeron of the 81st Precinct in front of 8 Thomas S. Boyland Street. Both officers retrieved § 87(2)(b) driver's license and registration and returned to their own vehicle. By that point, § 87(2)(b) and § 87(2)(b) caught up to § 87(2)(b) § 87(2)(b) sat on the front passenger seat while § 87(2)(b) stood on the sidewalk next to the vehicle. The officers informed § 87(2)(b) that his driver's license was suspended and placed him under arrest. § 87(2)(b) was handcuffed and placed inside of the officers' vehicle. PO Awal asked § 87(2)(b) several times to exit the vehicle so that it could be transported to the stationhouse. § 87(2)(b) refused to comply with PO Awal's directives. PO Awal allegedly grabbed § 87(2)(b)'s right arm and pulled her from the vehicle and took the vehicle's keys from her hands (**Allegation A: Force, Unsubstantiated**). As PO Awal was about to drive off in § 87(2)(b)'s vehicle, § 87(2)(b) allegedly asked him for his name and shield number. PO Awal allegedly only provided his name but not his shield number (**Allegation B: Abuse of Authority, Unsubstantiated**). § 87(2)(b) then walked to the police vehicle in which PO Angeron was sitting and asked for his name and shield number, but he allegedly rolled up his window and drove away (**Allegation C: Abuse of Authority, Unsubstantiated**).

At the 81st Precinct stationhouse, a second check of § 87(2)(b) driver's license was not suspended. He was released with a summons for § 87(2)(b) and a second summons for § 87(2)(b). Both of these summonses were issued by PO Awal. As § 87(2)(b) was leaving the stationhouse, PO Awal began rushing him to leave the stationhouse by allegedly stating, "Hurry up. Get the fuck out of here" (**Allegation D: Discourtesy, Unsubstantiated**). § 87(2)(b) asked PO Awal to provide his and PO Angeron's names in writing. PO Awal allegedly responded, "Get the fuck out of here" without providing the information requested (**Allegation D Subsumed: Discourtesy, Unsubstantiated**) and (**Allegation E: Abuse of Authority, Substantiated**).

Video footage for this incident was not recovered.

Findings and Recommendations

Allegation (A) Force: In front of 8 Thomas S. Boyland Street in Brooklyn, Police Officer Iftekharul Awal used physical force against § 87(2)(b)

§ 87(2)(b) (BR 03, 04) testified that following § 87(2)(b) arrest, PO Awal asked her to provide him with the vehicle's keys. § 87(2)(b) asked PO Awal the reason she needed to do

so, but she did not get an answer. She informed PO Awal that she would not give him the keys until she knew what he was doing with the vehicle because it belonged to her mother. At the time, § 87(2)(b) described her positioning in the vehicle as having half of her body inside of the vehicle, while the other half was outside. PO Awal approached § 87(2)(b) grabbed her right forearm and pulled her out of the vehicle. He then took the keys from her left hand.

§ 87(2)(b) (BR 01, 02, 05) initially testified although he was in the back of the police van approximately one car length behind his mother's vehicle, he heard PO Awal ask § 87(2)(b) for the vehicle's keys to move it around the corner. However, § 87(2)(b) later clarified under questioning by the undersigned that he did not know if PO Awal asked § 87(2)(b) for the keys before he observed PO Awal pull § 87(2)(b) from the vehicle and take the keys from her hand. § 87(2)(b) (BR 06) testified that as she stood next to the vehicle, she heard PO Awal instruct § 87(2)(b) over five times to exit the vehicle but § 87(2)(b) refused to exit until she was explained the reason why § 87(2)(b) was arrested. PO Awal walked to the passenger side of the vehicle, opened the door, grabbed § 87(2)(b) by the right arm and pulled her from the vehicle.

According to PO Awal (BR 07), following § 87(2)(b) arrest, PO Angeron went to the vehicle and asked § 87(2)(b) if she had a valid driver's license. She informed him that she did not. PO Awal stood by the police van with § 87(2)(b) and was able to see that § 87(2)(b) was still sitting inside of the vehicle. To his knowledge, § 87(2)(b) refused to exit the vehicle, but he observed her eventually walk out of the vehicle. PO Awal did not recall if either of the officers had to pull her out of the vehicle. PO Awal explained he asked § 87(2)(b) approximately two times for the vehicle's keys and both times she refused to give the keys to PO Awal. § 87(2)(b) eventually handed PO Awal the vehicle keys after bystanders encouraged her to give PO Awal the keys.

PO Angeron (BR 08) testified after § 87(2)(b) was arrested, he asked § 87(2)(b) if she had a driver's license and she informed him that she did not. PO Angeron informed § 87(2)(b) that she had to exit the vehicle as it had to be taken to the stationhouse to be vouchered since an arrest was made. PO Angeron explained during that time, he spoke to § 87(2)(b) from the driver's side of the vehicle while PO Awal remained at the police van with § 87(2)(b). PO Angeron explained although § 87(2)(b) informed him that he could not take the vehicle, she eventually exited the vehicle on her own. He did not grab her arm and pull her from the vehicle, nor did he see PO Awal grab her arm and pull her from the vehicle. Neither PO Angeron nor PO Awal made physical contact with § 87(2)(b). PO Angeron testified, when PO Awal came to the vehicle to drive it to the stationhouse, § 87(2)(b) was already out of the vehicle. He did not see PO Awal take the vehicle keys from § 87(2)(b).

§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**

Allegation (B) Abuse of Authority: In front of 8 Thomas S. Boyland Street in Brooklyn, Police Officer Iftekharul Awal refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified after she was pulled from the vehicle she asked PO Awal for his name and shield number, but PO Awal only provided his name and did not provide his shield number.

§ 87(2)(b) testified after PO Awal went inside of the vehicle to move it, § 87(2)(b) asked him for his name. PO Awal provided it quickly before driving away from the scene.

§ 87(2)(b) did not hear § 87(2)(b) ask for PO Awal's name and shield number. PO Awal testified he did not remember if anyone asked him for his name and shield number.

PO Angeron did not hear anyone ask PO Awal for his name and shield number.

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: In front of 8 Thomas S. Boyland Street in Brooklyn, Police Officer Christian Angeron refused to provide his name and shield number to

§ 87(2)(b)

§ 87(2)(b) testified after speaking with PO Awal, she immediately went to the police van and asked PO Angeron for his name and shield number, but PO Angeron rolled up the window while § 87(2)(b) was speaking to him.

§ 87(2)(b) testified that although he was in the back of the police van, he did not see § 87(2)(b) approach the van nor did he hear § 87(2)(b) ask for PO Angeron's name and shield number. § 87(2)(b) further explained he only heard § 87(2)(b) ask where he was being taken, but PO Angeron drove off.

§ 87(2)(b) testified, § 87(2)(b) went to the van and asked PO Angeron for his name, but he rolled up the window and drove away.

PO Angeron testified that no one asked him for his name and shield number.

PO Awal did not remember hearing § 87(2)(b) ask PO Angeron for his name and shield number.

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Discourtesy: Police Officer Iftekharul Awal spoke discourteously to

§ 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Iftekharul Awal refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) testified after he was taken to the 81st Precinct stationhouse, he was released within 20 to 30 minutes with two summonses. PO Awal began rushing him off the stationhouse's parking lot property by telling him, "Hurry up. Get the fuck out of here." At that point, § 87(2)(b)

§ 87(2)(b) asked PO Awal for his name or to write it down. PO Awal responded, “Get the fuck out of here” and did not provide § 87(2)(b) with his name.

PO Awal testified, after § 87(2)(b) was released, he explained the summonses to § 87(2)(b). PO Awal explained he did not remember telling § 87(2)(b) “Hurry up. Get the fuck out of here.” PO Awal did not hear any other officers make this statement to § 87(2)(b). PO Awal further explained that he does not curse when he was asked if he used any profanity towards § 87(2)(b). PO Awal explained as § 87(2)(b) was leaving from the parking lot, he asked him for his name and shield number. PO Awal responded, “It’s right here” as he pointed to his nameplate and shield on his uniform, and stated, “My name is on the summonses.” PO Awal was facing § 87(2)(b) approximately three feet away. PO Awal explained he did not remember if he verbally provided his name and shield number to § 87(2)(b). During that time there were no other officers or civilians outside with PO Awal and § 87(2)(b).

PO Angeron testified after PO Awal issued the summonses to § 87(2)(b) neither him or PO Awal had any further interactions with § 87(2)(b).

An officer should courteously and clearly state their rank, name, shield number and command when requested by anyone to do so. NYPD Patrol Guide 203-09 (BR 14).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
As such, it recommended that **Allegation D** be closed as **unsubstantiated**. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint for § 87(2)(b) and § 87(2)(b) (BR 11, 12, 17, 18).
- PO Awal has been a member of the service for six years. This is the first CCRB complaint filed against him.
- PO Angeron has been a member of the service for one year. This is the first CCRB complaint filed against him.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected to mediate with PO Awal and PO Angeron § 87(2)(b).
- On December 8, 2017, a notice of claim inquiry for § 87(2)(b) and § 87(2)(b) was sent to the Office of the New York City Comptroller. On December 15, 2017, the notice of claim revealed that there are no records found (BR 13).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 15

Investigator: _____ Inv. McFarlane-Ross _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date